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|   |                                                 | <p>clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.”] (<i>Coalition for an Equitable Westlake/MacArthur Park v. City of Los Angeles</i> (2020) 47 Cal.App.5th 368, 376, internal quotation marks and citations omitted.)</p> <p>Amy suggests the court should decide the issue as a matter of law. It cannot. First, the notice is not attached to the Petition, so it is outside the Petition and is not subject to judicial notice (which was not requested). Second, the Petition alleges the notice was defective because it did not set forth certain statutory language required by Probate Code section 16061.7 (h). If that allegation is correct, the notice was deficient. The Demurrer is <b>OVERRULED</b> and the MJOP is <b>DENIED</b> on the time-bar grounds.</p> <p>The demurrer is <b>OVERRULED</b>. The MJOP is <b>DENIED</b>. The associated motion for attorney fees and costs is also <b>DENIED</b>.</p> <p>Tricia is directed to give notice.</p> |
| 5 | <b>Rutherford - Trust;<br/>30-2025-01532759</b> | <p><b><i>Rutherford – Trust (2025-01532759) #5<br/>Demurrer &amp; Motion to Strike</i></b></p> <p>Respondent John M. Rutherford’s Demurrer (ROA 9) is <b>OVERRULED</b> in part and <b>SUSTAINED</b> in part as set forth below.</p> <p>Respondent John M. Rutherford’s Motion to Strike (ROA 10) is <b>DENIED</b>.</p> <p><b>I. PETITION</b></p> <p>This proceeding arises out of a family trust created by settlors John R. Rutherford and Mona Lee Rutherford on March 21, 2001 (Trust). John Rutherford passed away on August 30, 2011. Mona Lee Rutherford passed away on October 6, 2024. Upon Mona’s passing, the settlors’ children, Petitioner Robin Lee Nesteruk and Respondent John M. Rutherford, became acting successor co-trustees of the Trust. Under the terms of the Trust, Petitioner and Respondent were to receive equal distributions of Trust Assets.</p>                                                                                                                                                                                |